

STATE OF NEW YORK
SUPREME COURT COUNTY OF NEW YORK

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ARTHUR BLAKE,

Plaintiff,

-against -

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL PALAM, POLICE OFFICER JOHN
KIERMAN and DETECTIVE LAWRENCE
ZEUFLE, in their individual and official capacities
as Police Officers employed by the City of
New York,

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or of the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: March 20, 2015
New York, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
352 7th Avenue, Suite 1222
New York, NY 10001
(212) 695-5811

DEFENDANTS' ADDRESS:
The City of New York
1 Centre Street
New York, NY 10007

Police Officer Michael Palam
Police Officer John Kierman
Detective Lawrence Zeufle
Mid Town South Precinct
357 W. 35th Street
New York, NY 10001

STATE OF NEW YORK
SUPREME COURT

COUNTY OF NEW YORK

-----X

ARTHUR BLAKE,

Plaintiff,

COMPLAINT

Index No.:

Date Filed:

- against -

**THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL PALAM, POLICE OFFICER JOHN
KIERMAN and DETECTIVE LAWRENCE
ZEUFLE**, in their individual and official capacities
as Police Officers employed by the City of
New York,

Defendants.

-----X

Plaintiff, by his attorney, ANDREW F. PLASSE & ASSOCIATES, LLC, as and
for his Complaint, hereby alleges and shows to the Court the following, all upon
information and belief:

1. At all times hereinafter mentioned, the Plaintiff Arthur Blake is an individual
and resides at Ulster Correctional Facility, PO Box 800, Napanoch, NY 12458.

2. Upon information and belief, and at all times hereinafter mentioned, defendant
City of New York, was and now is, a municipal corporation, existing under and
incorporated under the laws of the State of New York, with its principal place of business
located at the Municipal Building, One Centre Street, New York, NY 10007.

3. That heretofore the Plaintiff caused a Notice of Claim, in writing, sworn to by
and on behalf of the Plaintiff, to be duly served upon the defendant City of New York by
delivering a copy thereof to the Office of the Comptroller of the City of New York,
which said Notice of Claim set forth the name and post office address of the said
Plaintiff, the nature of the claim, the time when, the place where and the manner in which

said claim arose and the items of damages or injuries claimed to have been sustained so far as then practicable; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

4. That upon information and belief, the City of New York owned, operated, controlled and maintained the New York City Police Department by charter, or by law, under the provisions of the State and/or City of New York.

5. At all times hereinafter mentioned the defendants Police Officer Michael Palam Police Officer John Kierman and Detective Lawrence Zeufle were employed as New York City Police Officers at the Mid-Town South Precinct, 357 W. 35th Street, New York, NY.

6. At all times hereinafter mentioned, the defendants Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle acted under color of state law or a statute, ordinance, regulation or custom.

7. On March 25, 2014 at approximately 10:57 a.m., Arthur Blake was walking out of a store at 464 9th Avenue, New York, NY, with a bag that he had found on a bench.

8. Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle arrested plaintiff.

9. Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle got on top of Arthur Blake, was handcuffed while on the ground, and during the course of the handcuffing twisted his arm with great and excessive and needless physical force, with the result that the defendants caused plaintiff to sustain a

severe right shoulder injury, consisting of a rotator cuff tear, and tear of his infraspinatus tendon and other personal injuries to other parts of his body.

10. Arthur Blake sustained personal injuries as a result of the foregoing.

PLAINTIFFS' CLAIM.

11. Upon information and belief, Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle, the officers involved herein, acted with actual malice toward the plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiffs.

12. Upon information and belief, the actions taken as aforesaid by Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle constituted excessive force, an unreasonable search and seizure in violation of the Fourth Amendment, denial of prompt medical treatment, and a deprivation of liberty without due process of law.

13. Upon information and belief, the conduct of Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle violated the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST
DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES
AND REALLEGES EACH AND EVERY ALLEGATION SET
FORTH IN PARAGRAPHS MARKED AND ENUMERATED
"1-13" AND FURTHER ALLEGES AS FOLLOWS:**

14. That the employees of the defendant as aforesaid assaulted and battered the plaintiff causing him to sustain severe personal injuries.

15. That such conduct was committed in the scope of employment with the City of New York.

16. The City of New York is liable for the intentional torts committed by its employees in the scope of their employment pursuant to the doctrine of respondeat superior.

17. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-13" AND FURTHER ALLEGES AS FOLLOWS:

18. New York City owed a duty to Plaintiff to train and supervise and otherwise control its Police Officers in the proper methods of Use of Force incidental to this matter, and in the course of their Police functions. New York City failed to provide adequate training, hiring, supervision and control for the Police Officers involved herein, and said failure constitutes negligence.

19. As a proximate result of the City of New York's negligence to provide adequate training, hiring, supervision and control of the Police Officers involved herein, Plaintiff has sustained personal injuries.

20. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-13" AND FURTHER ALLEGES AS FOLLOWS:

21. That the employees of the defendant as aforesaid jointly and severally assaulted and battered the plaintiff causing him to sustain severe personal injuries.

22. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-13" AND FURTHER ALLEGES AS FOLLOWS:

23. New York City owed a duty to Plaintiff to train and supervise and otherwise control its Police Officers in the proper methods of arresting individuals incidental to this matter, and in the course of their Policing functions. New York City failed to provide adequate training, hiring, supervision and control for the Police Officers involved herein, and said failure constitutes negligence.

24. As a proximate result of the City of New York's negligence to provide adequate training, hiring, supervision and control of the Police Officers involved herein, Plaintiff has sustained personal injuries.

25. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-13" AND FURTHER ALLEGES AS FOLLOWS:

26. Upon information and belief, the actions taken as aforesaid by Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle, constituted an unreasonable search and seizure and deprivation of liberty without due process of law.

27. Upon information and belief, at all times pertinent hereto, New York City permitted and tolerated a pattern and practice of unreasonable search and seizures, stop and frisks, denial of prompt medical treatment, and deprivations of liberty without due process of law by Police Officers of the City of New York.

28. Upon information and belief, the City of New York has maintained a system of review of this police conduct which is so untimely and cursory as to be ineffective and which permits and tolerates the unreasonable stop and frisks, search and seizures and deprivations of liberty without due process of law by Police Officers.

29. At all times pertinent hereto, Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle were acting within the scope of their employment and pursuant to the aforementioned policies and practices of the City of New York. These policies and practices which were enforced by Defendant City of New York were the moving force, proximate cause, or the affirmative link behind the conduct causing the stop of the plaintiff and the plaintiff's subsequent injuries.

30. The City of New York is therefore liable for the violations of Plaintiff's constitutional rights by Defendant's Police Officers.

31. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST POLICE OFFICER
MICHAEL PALAM, POLICE OFFICER JOHN KIERMAN AND DETECTIVE**

LAWRENCE ZEUFLE, JOINTLY AND SEVERALLY, PLAINTIFF ARTHUR BLAKE RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-13" AND FURTHER ALLEGES AS FOLLOWS:

32. Upon information and belief, the actions taken as aforesaid by Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle, constituted excessive force, in violation of the Fourth and Eighth Amendments and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

33. Upon information and belief, Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle, acted with actual malice toward the Plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

34. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

35. That by virtue of the foregoing, Plaintiff Arthur Blake has been damaged in the amount of FIVE MILLION [\$5,000,000.00] DOLLARS

AS AND FOR A SECOND CAUSE OF ACTION AGAINST POLICE OFFICER MICHAEL PALAM, POLICE OFFICER JOHN KIEMAN AND DETECTIVE LAWRENCE ZEUFLE, JOINTLY AND SEVERALLY, PLAINTIFF ARTHUR BLAKE RESTATES AND REALLEGES EACH AND EVERY ALLEGATION

**SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED “1-13” AND
FURTHER ALLEGES AS FOLLOWS:**

36. *Upon information and belief, the actions taken as aforesaid by Police Officer Michael Palam, Police Officer John Kierman and Detective Lawrence Zeufle, constituted an assault and battery.*

37. *Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.*

38. *That by virtue of the foregoing, Plaintiff Arthur Blake has been damaged in the amount of FIVE MILLION [\$5,000,000.00] DOLLARS*

WHEREFORE, Plaintiff demands Judgment as follows:

I. Judgment on the First Cause of Action on behalf of the Plaintiff Arthur Blake against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

II. Judgment on the Second Cause of Action on behalf of the Plaintiff Arthur Blake against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

III. Judgment on the Third Cause of Action on behalf of the Plaintiff Arthur Blake against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IV. Judgment on the Fourth Cause of Action on behalf of the Plaintiff Arthur Blake against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

V. Judgment on the Fifth Cause of Action on behalf of the Plaintiff Arthur Blake against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

VI. Judgment on the First Cause of Action on behalf of the Plaintiff Arthur Blake against Police Officer Michael Palam Police Officer John Kierman and Detective Lawrence Zeufle in the amount of FIVE MILLION [\$5,000,000.00] DOLLARS;

VII. Judgment on the Second Cause of Action on behalf of the Plaintiff Arthur Blake against Police Officer Michael Palam Police Officer John Kierman and Detective Lawrence Zeufle in the amount of FIVE MILLION [\$5,000,000.00] DOLLARS;

VIII. Punitive damages on behalf of the Plaintiff Arthur Blake against Police Officer Michael Palam Police Officer John Kierman and Detective Lawrence Zeufle in the amount of FIVE MILLION [\$5,000,000.00] DOLLARS;

IX. Together with the costs and disbursements of this action, reasonable attorney fees under the Federal Statutes and for such other and further relief as to this Court seems just and proper.

DATED: March 20, 2015
 New York, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
352 7th Avenue, Suite 1222
New York, NY 10001
(212) 695-5811

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss.:

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am attorney of record for Arthur Blake, the plaintiff in the within action; I have read the foregoing COMPLAINT and I know the contents thereof; the same is true as to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe it to be true; the reason why this verification is made by me and not by Arthur Blake, is because he resides outside of the County of New York, and is outside the principal location of my office which is located in New York County.

The grounds of my belief as to those matters not stated upon my own knowledge are as follows: Review of his file maintained by my office in the ordinary course of business.

DATED: March 20, 2015
 New York, New York



ANDREW F. PLASSE